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|     |                                                                                                | <p>reimbursement of expenses, (3) approving the Receiver's proposed distribution of funds; (4) exonerating all bonds, (5) terminating the Receivership appointment, and (6) retaining jurisdiction regarding this Receivership appointment.</p> <p>The motion is unopposed.</p> <p>Pursuant to California Rules of Court, rule 3.1184, the Motion is GRANTED.</p> <p>Receiver to give notice</p> <p>2. Order to Show Cause re: Dismissal</p> <p>Court is inclined to dismiss the case but will hear from the parties first.</p>                                                                                                                                                                                                                                                                                                                                                |
| 109 | <p><b>Hernandez-Magana vs. Volkswagen Group of America, Inc.</b></p> <p><b>24-01450948</b></p> | <p>Motion for Attorney Fees</p> <p>Plaintiffs Sharon Hernandez-Magana and Jonathan Hernandez-Magana's ("Plaintiffs") motion for attorney fees is GRANTED IN PART, and Plaintiffs are awarded \$21,607 in attorney fees.</p> <p>Plaintiffs initially sought \$23,539, consisting of a base lodestar of \$18,939, \$2,300 for work relating to the attorney-fee motion, and \$2,300 for work relating to Defendant's motion to tax costs. (Figura Decl., ¶ 28.) Plaintiffs' reply reduces the request to \$22,527, consisting of the \$18,939 base lodestar, \$2,300 for additional fee-motion work, and \$1,288 actually incurred in connection with Defendant's motion to tax costs. (Reply, p. 7; Supp. Figura Decl., ¶¶ 3, 9.)</p> <p>Entitlement to Award:</p> <p>Under Civil Code section 1794, subdivision (d), a prevailing buyer may recover attorney fees based on</p> |

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|  | <p>actual time expended and reasonably incurred in prosecuting the action.</p> <p>Plaintiffs are the prevailing parties. The parties resolved the action through Defendant’s Code of Civil Procedure section 998 offer, under which Defendant agreed, in pertinent part, to pay Plaintiffs \$145,353.16, repurchase the subject vehicle, and pay Plaintiffs’ attorney fees and litigation costs pursuant to a noticed motion. (Figura Decl., ¶ 10, Ex. 2.)</p> <p>Defendant does not dispute Plaintiffs’ entitlement to fees, but disputes only the amount of the requested award. (Rankell Decl., ¶¶ 6–8.)</p> <p>Accordingly, Plaintiffs are entitled to recover reasonable attorney fees under Civil Code section 1794, subdivision (d).</p> <p>Standard of Review:</p> <p>An award of attorneys’ fees will be affirmed absent a showing the trial court abused its discretion. (Jones v. Union Bank of California (2005) 127 Cal.App.4th 542, 549 [“We must affirm an award of attorneys’ fees absent a showing that the trial court clearly abused its discretion.”]) Moreover, an abuse of discretion is shown only where an “award shocks the conscience or is not supported by the evidence.” (Ibid.) “The only proper basis of reversal of the amount of an attorney fees award is if the amount awarded is so large or small that it shocks the conscience and suggests that passion and prejudice influenced the determination.” (Akins v. Enterprise Rent-A-Car Co. of San Francisco (2000) 79 Cal.App.4th 1127, 1134.)</p> <p>The above standard is an acknowledgment that “[t]he experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that</p> |
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|  | <p>it is clearly wrong.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.)</p> <p>Lodestar Amount:</p> <p>“[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) “California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys’ fee award.” (Ibid.) “The reasonable hourly rate is that prevailing in the community for similar work.” (Ibid.)</p> <p>“ ‘In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other case.’” (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41; See also Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)</p> <p>1. Hourly Rates</p> <p>Plaintiffs request compensation at rates that vary by attorney and by the date the work was performed.</p> <p>Timekeeper Earlier Rates Current Rate</p> <p>Carey B. Wood \$500 (Aug 2022) \$520 (Jan 2024)<br/>\$525 (July 2024) \$540 (Feb 2025) \$560 (Jan 2026)</p> |
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|  | <p>Michael Figura \$430 (May 2024) \$450 (Feb 2025)<br/>\$460 (Jan 2026)</p> <p>Bobby C. Walker \$400 (Jun 2023) \$440 (Jan 2026)<br/>\$415 (Jan 2024) \$430 (Feb 2025)</p> <p>CLE Paralegals \$215</p> <p>Attorney Carey B. Wood is a senior partner who has practiced since 2013, exclusively litigated Song-Beverly matters since 2017, handled hundreds of such matters, and served as trial counsel. (Figura Decl., ¶ 13.)</p> <p>Attorney Michael Figura is an associate admitted in California in 2017, with prior civil and criminal litigation experience, including 11 jury trials. He has exclusively handled Song-Beverly matters since May 2024. (Figura Decl., ¶ 12.)</p> <p>Attorney Bobby C. Walker is an associate admitted in California in 2018 who has handled Song-Beverly matters for both manufacturers and consumers and litigated hundreds of such matters. (Figura Decl., ¶ 14.)</p> <p>Plaintiffs submit evidence that courts have previously approved the same or substantially similar rates. (Figura Decl., ¶¶ 16-22, Exs. 3-9.)</p> <p>Defendant asks the Court to reduce all attorney rates to \$400 per hour because the case was routine and did not involve depositions, expert discovery, dispositive motions, or trial. (Rankell Decl., ¶ 7.) Defendant’s request, however, is not supported by evidence showing that \$400 is the prevailing market rate in Orange County for attorneys with comparable experience. Moreover, the relative simplicity of the case bears more directly on the reasonableness of the hours expended than on counsel’s hourly rates.</p> |
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For context, in *Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, a Song-Beverly action arising out of Orange County, the court noted that a \$650 hourly rate was “not an extraordinary, high hourly fee” and, rather, was a fee “we see somewhat routinely.” (Id. at p. 350.) Similarly, in *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, a Song-Beverly action arising out of San Diego, the court found the hourly rate of \$575 to be reasonable. (Id. at pp. 473-474.)

Based on the foregoing, as well as the Court’s own experience with similar cases, the Court approves the requested hourly rates as reasonable and consistent with rates approved in comparable Song-Beverly matters in Orange County.

## 2. Time Expended

Thereafter, “Civil Code section 1794 requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34 [cleaned up internal quotations].) “A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (*Ibid.* [cleaned up internal quotations].)

“In evaluating whether the attorney fee request is reasonable, the trial court should consider “whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38.) ““Reasonable compensation does not include compensation for ‘padding’ in the form of inefficient or duplicative efforts....’ [Citations.] “A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that

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|  | <p>the opposing party has stated valid objections.” ’ ’ ”<br/>(Ibid.)</p> <p>“[V]erified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)</p> <p>In support of the motion, Plaintiffs submit computerized billing records reflecting the time spent litigating this action. (Figura Decl., ¶ 25, Ex. 10.) Plaintiffs’ counsel represents that time is recorded contemporaneously in one-tenth-hour increments and that the records were audited to remove duplicative, excessive, or unnecessary entries. (Figura Decl., ¶¶ 24–25.) The records reflect 48.4 hours and a base lodestar of \$18,939.</p> <p>Defendant, in opposition, raises multiple objections.</p> <p>a. Fee Motion and Motion to Tax</p> <p>Defendant objects to Plaintiffs requested fees incurred in connection with the attorney-fee motion and Defendant’s motion to tax costs. Defendant argues that such fees were not incurred in prosecuting Plaintiffs’ underlying claims. However, fees reasonably incurred in establishing and defending a statutory fee claim are recoverable. (McKenzie v. Ford Motor Co. (2015) 238 Cal.App.4th 695, 703.)</p> <p>Defendant also contends that the amounts requested are excessive.</p> <p>Motion for Attorney Fees: Defendant contends that counsel already billed 2.3 hours to prepare the motion and seeks an additional \$2,300 for reviewing the opposition, preparing the reply and supplemental declaration, and attending the hearing. Defendant argues that the fee motion was largely template-based</p> |
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and requests that the total fee-motion work be limited to 3.5 hours at \$400 per hour. (Rankell Decl., ¶¶ 9–13.)

The Court finds the time spent preparing the motion reasonable, but finds the additional time spent reviewing the opposition and preparing the reply somewhat excessive. Figura states that he spent 5.1 hours reviewing Defendant’s opposition and preparing the reply and supplemental declaration, including approximately 1.5 hours verifying Defendant’s billing tables after discovering inaccuracies. (Supp. Figura Decl., ¶¶ 3, 5–6.) Although some additional time was reasonably required to address those errors, the Court finds 5.1 hours excessive given the relatively straightforward nature of the fee dispute.

The Court finds that 3 hours for the additional fee-motion work, including hearing preparation and appearance, at Figura’s \$460 hourly rate, or \$1,380, is therefore, reduced by \$920.

Motion to Tax Costs: Defendant argues that the issues were narrow, involving only two disputed cost items totaling \$748.45, and that the hearing lasted less than one hour. Defendant therefore contends that no more than 2.5 hours at \$400 per hour, or \$1,000, should be awarded. (Rankell Decl., ¶¶ 14–15.) Defendant also challenges \$249.50 in the base lodestar associated with preparation, service, and filing of Plaintiffs’ Memorandum of Costs. (Rankell Decl., ¶ 15, Ex. A.)

Plaintiffs reduced their original anticipated request of \$2,300 to the amount actually incurred: 2.8 hours at Figura’s \$460 hourly rate, or \$1,288. (Supp. Figura Decl., ¶¶ 8–9.) Although the motion involved a relatively small amount of costs, the Court finds that 2.8 hours for reviewing the papers, preparing Plaintiffs’ response, and appearing at the hearing is reasonable. As to Defendant’s separate challenge to the \$249.50 associated with preparation, service, and filing of the Memorandum of Costs, Defendant has not established

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|  | <p>a sufficient basis for a separate reduction. The Court therefore declines to reduce these amounts.</p> <p>b. Written Discovery</p> <p>Defendant challenges 9.8 hours and \$3,611 billed for discovery responses and requests a \$1,200 reduction. (Rankell Decl., ¶ 16, Ex. A.)</p> <p>The time appears reasonable given the number of discovery requests and the two Plaintiffs. Defendant does not identify what specific amount of the claimed time should be disallowed to support its proposed \$1,200 reduction. The Court therefore declines to reduce these amounts.</p> <p>c. Post-Acceptance Settlement Work</p> <p>Defendant challenges 5.8 hours and \$1,635.50 billed after settlement and requests a \$1,000 reduction. (Rankell Decl., PP17-18, Ex. A.)</p> <p>However, a review of the billing entries shows that the time was spent communicating with Plaintiffs and defense counsel, addressing vehicle-surrender and payoff/lien issues, handling internal file matters, and preparing vehicle-surrender documents.</p> <p>It appears this work was reasonably necessary to complete the repurchase and implement the settlement. Although Defendant identifies repeated short communications as excessive, it does not identify which particular entries should be disallowed or explain how it arrived at the proposed flat \$1,000 reduction. The Court therefore declines to reduce these amounts.</p> <p>d. Defect Analysis &amp; Case Strategy Conference</p> <p>Defendant challenges 8.5 hours and \$2,601 billed for repair-history review, TSB and recall research, and</p> |
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|            |                                                                         | <p>internal case strategy, and requests a \$1,500 reduction. (Rankell Decl., ¶ 20.)</p> <p>The billing entries show that counsel reviewed the purchase and repair records, researched the alleged defects and related technical materials, and prepared a defect definition for discovery. This work appears reasonably necessary to investigate Plaintiffs' claims and prepare discovery. The Court therefore declines to reduce these amounts.</p> <p>Total Award</p> <p>Plaintiffs, in the reply, reduced the operative fee request from \$23,539 to \$22,527, by reducing the motion-to-tax component from \$2,300 to the \$1,288 actually incurred. The Court further reduces the request by \$920 for additional fee-motion work. Accordingly, Plaintiffs are awarded \$21,607 in attorney fees.</p> <p>Moving parties to give notice.</p>              |
| <b>110</b> | <p><b>Maurstad vs. General Motors LLC</b></p> <p><b>25-01486032</b></p> | <p>Motion for Attorney Fees</p> <p>The Motion for Attorney Fees brought by Plaintiff Britt Kristin Maurstad is GRANTED in part, pursuant to Civil Code section 1794, subdivision (d).</p> <p>It is undisputed that the Song-Beverly Act allows a prevailing plaintiff to recover "attorneys' fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, §1794, subd. (d).)</p> <p>Additionally, it is undisputed Plaintiff qualifies as a "prevailing party," for purposes of this provision. Per the parties, a Settlement was entered into wherein it was agreed that General Motors would pay Plaintiff \$90,000, Plaintiff would be considered the "prevailing party," and reasonable attorneys' fees and costs would</p> |